

From: [AI Mid](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan
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Revocation of the Biden-Harris AI Executive Order 14110 of October 30, 2023 (Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence), has the opposite effect of stated Trump goals, is short sided, and violates copyright laws.

The revocation of Executive Order 14110, which emphasized the "Safe, Secure, and Trustworthy Development and Use of Artificial Intelligence," could hamper private sector AI innovation in several ways:

1. ****Loss of Safety and Transparency Frameworks****: EO 14110 required private companies to share results of safety tests (e.g., red-teaming) for high-risk AI models. This encouraged transparency and collaboration between the government and private sector, fostering trust in AI systems. Its removal may lead to inconsistent safety practices across the industry[1][2][3].
2. ****Disruption of Regulatory Certainty****: The Biden EO laid out clear guidelines for AI development, including frameworks for algorithm transparency and data interoperability. Revoking these efforts creates uncertainty for businesses, potentially delaying investments or product launches due to unclear regulatory expectations[1][4].
3. ****Paused Federal Initiatives****: Several initiatives inspired by EO 14110, such as the Department of Commerce's rulemaking on dual-use AI models and the U.S. AI Safety Institute, are now under review or halted. These initiatives provided critical support for innovation while addressing risks like misuse of foundation models[2][5].
4. ****Shift in Priorities****: The replacement Trump EO focuses on enhancing U.S. global AI dominance but is relatively light on specific policy directives. This shift may deprioritize safeguards that balance innovation with ethical considerations, leaving gaps in areas like consumer protection and equity[4][7].

While the Trump Administration's new policies aim to reduce barriers to innovation, the absence of structured safety protocols and regulatory clarity could hinder long-term private sector growth in AI.

Citations:

[1] The Impact of AI Executive Order's Revocation Remains Uncertain ...

<https://www.hunton.com/privacy-and-information-security-law/the-impact-of-ai-executive-orders-revocation-remains-uncertain-but-new-trump-eo-points-to-path-forward>

[2] January 2025 AI Developments – Transitioning to the Trump ...

<https://www.insidegovernmentcontracts.com/2025/02/january-2025-ai-developments-transitioning-to-the-trump-administration/>

[3] United States: AI tug-of-war - Trump pulls back Biden's AI plans

<https://insightplus.bakermckenzie.com/bm/data-technology/united-states-ai-tug-of-war-trump-pulls-back-bidens-ai-plans>

- [4] AI: Broad Biden Order Is Withdrawn, but Replacement Policies Are ...
<https://www.skadden.com/insights/publications/executive-briefing/ai-broad-biden-order-is-withdrawn>
- [5] Executive Order: Removing Barriers to American Leadership in ...
<https://www.hklaw.com/en/insights/publications/2025/01/executive-order-removing-barriers-to-american-leadership-in-ai>
- [6] Initial Rescissions Of Harmful Executive Orders And Actions
<https://www.whitehouse.gov/presidential-actions/2025/01/initial-rescissions-of-harmful-executive-orders-and-actions/>
- [7] Removing Barriers to American Leadership in Artificial Intelligence
<https://www.whitehouse.gov/presidential-actions/2025/01/removing-barriers-to-american-leadership-in-artificial-intelligence/>
- [8] Trump revokes Biden executive order on addressing AI risks - Reuters
<https://www.reuters.com/technology/artificial-intelligence/trump-revokes-biden-executive-order-addressing-ai-risks-2025-01-21/>

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